

COMMITTEE AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB1250 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Amendment submitted by: Chris Banning

Adopted: _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

PROPOSED POLICY
COMMITTEE SUBSTITUTE
FOR ENGROSSED
SENATE BILL NO. 1250

By: Hamilton, Jett, Standridge,
Alvord, Bullard, Prieto,
Burns, McIntosh, Guthrie,
and Sacchieri of the Senate

and

Banning of the House

PROPOSED POLICY COMMITTEE SUBSTITUTE

An Act relating to schools; defining terms; requiring each school district and charter school to submit to the State Department of Education certain listing annually by certain date; allowing submission of certain attestation; prohibiting certain materials and content from being accessible to certain students; describing materials deemed harmful to minors; requiring evaluation of certain materials; requiring review of new materials by district personnel; providing certain construction; providing process for reporting suspected violations; providing for contents of report; providing for investigation; providing for certain notification regarding investigation findings; allowing an appeal of investigation findings to the State Department of Education; providing for contents of appeal; requiring certain investigation and notification of investigation findings; allowing a school district or charter school to request certain hearing within certain time period; directing the State Board of Education to review certain information and vote on certain determination; authorizing certain designation of a school for certain noncompliance; authorizing the State Board of Education to report certain responses, violations, and status of

1 noncompliant school districts or charter schools;
2 providing certain penalty for noncompliance;
3 directing removal of certain materials under
4 investigation; providing for promulgation of rules;
5 providing for codification; providing an effective
6 date; and declaring an emergency.

7 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

8 SECTION 1. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 11-203 of Title 70, unless there
10 is created a duplication in numbering, reads as follows:

11 A. As used in this section:

12 1. "Harmful to minors" has the same meaning as provided in
13 Section 1040.75 of Title 21 of the Oklahoma Statutes;

14 2. "Library" means a school library, media program, classroom
15 library, or any other collection of books or other materials, print
16 or digital, that are maintained by a school district or charter
17 school or its employees for use by students and that do not qualify
18 as textbooks approved by the State Textbook Committee pursuant to
19 Sections 16-101 through 16-124 of Title 70 of the Oklahoma Statutes;

20 3. "Nudity" has the same meaning as provided in Section 1040.75
21 of Title 21 of the Oklahoma Statutes;

22 4. "Obscene" has the same meaning as provided in Section 1024.1
23 of Title 21 of the Oklahoma Statutes;

24 5. "School library" means the library maintained by a school
district or charter school for use by students; and

1 6. "Sexually explicit content" means any communication,
2 language, or material including a written description, illustration,
3 photographic image, video image, or audio file that describes,
4 depicts, or portrays actual or simulated sexual intercourse, deviate
5 sexual intercourse, rape, sexual bestiality, masturbation, sado-
6 masochistic abuse, incest, molestation, necrophilia, or lewd
7 exhibition of the genitals, anus, or any portion of the female
8 breast below the top of the areola.

9 B. By October 1, 2026, and by every October 1 thereafter, each
10 school district and charter school shall submit to the State
11 Department of Education a complete listing of all books and other
12 materials available in its school library. To fulfill the
13 requirement of this subsection, a school district or charter school
14 superintendent may submit an attestation that the public online
15 school library catalog or catalogs contain a complete and accurate
16 list of books and other materials accompanied by the website for
17 accessing the relevant catalog or catalogs.

18 C. 1. A library in a school district or charter school shall
19 be prohibited from having any materials available for checkout by
20 students which would be deemed harmful to minors. Materials to be
21 considered harmful to students include, but are not limited to,
22 those which contain pornographic material, depictions or
23 descriptions of nudity intended to cause sexual excitement,
24 depictions of sexual conduct or depictions which as a whole are

1 intended to cause sexual excitement, sadomasochistic abuse, or
2 sexualized content, as defined in this section.

3 2. Materials to be included in or added to a school district or
4 charter school library shall be evaluated as a reasonable person
5 would find the material as a whole, weighing anything harmful to
6 minors with the serious literary, scientific, historical, medical,
7 artistic, educational or political purposes or value, and
8 considering the youngest age of students with access to the
9 material.

10 3. New materials to be added to a school library shall be
11 reviewed by district personnel as designated by the school district
12 or charter school superintendent for materials harmful to minors due
13 to pornographic material, depictions or descriptions of nudity
14 intended to cause sexual excitement, depictions of sexual conduct or
15 depictions which as a whole are intended to cause sexual excitement,
16 sadomasochistic abuse, or sexualized content, as defined in this
17 section.

18 D. Nothing in this section shall prohibit a student from
19 reading, owning, possessing, or discussing any book obtained without
20 the assistance or encouragement of a school district or charter
21 school, its employees, or its libraries; provided, however, nothing
22 in this section shall be construed to allow a student to bring
23 materials containing or depicting obscene material, sexually
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1 explicit content, nudity, or material that is harmful to minors on
2 the grounds of a school district or charter school.

3 E. 1. The parent or legal guardian of a student enrolled in a
4 school district or charter school may report suspected violations of
5 the provisions of this section to the school district board of
6 education or the charter school governing body. The report shall
7 include a written complaint summarizing the alleged violation
8 including the time, date, and location of the alleged violation and
9 the identity of any person involved.

10 2. Within fourteen (14) business days of receiving a report
11 pursuant to this subsection, the school district board of education
12 or charter school governing body shall conduct an investigation to
13 determine whether a violation occurred. The school district board
14 of education or charter school governing body shall notify the
15 parent or legal guardian who submitted the report of the findings of
16 the investigation.

17 3. A parent or legal guardian who submits a report pursuant to
18 this subsection may appeal the findings of the school district board
19 of education or charter school governing body to the State
20 Department of Education. The appeal shall include a copy of the
21 report submitted to the school district board of education or
22 charter school governing body pursuant to paragraph 1 of this
23 subsection and the investigation findings reported pursuant to
24 paragraph 2 of this subsection. The State Department of Education

1 shall conduct an investigation to determine whether a violation
2 occurred. The Department shall notify the parent or legal guardian
3 who submitted the report and the school district or charter school
4 of the findings of the investigation.

5 4. If the Department determines a violation occurred, the
6 school district or charter school shall have fourteen (14) business
7 days to request a hearing before the State Board of Education. The
8 Board shall review the alleged violation, the findings of the
9 investigation by the Department, and the response from the school
10 district or charter school and vote on whether to uphold the
11 determination of the Department.

12 5. If the State Board of Education votes to uphold the
13 determination of the State Department of Education, the Board is
14 authorized to report a school district or charter school on the
15 accreditation report for noncompliance with the provisions of this
16 section. The State Board of Education may report as follows:

- 17 a. the State Board of Education shall consider the
18 response from the school district or charter school
19 following the Board upholding of the determination of
20 the State Department of Education, and in determining
21 appropriate accreditation reporting, if necessary,
- 22 b. under existing administration, to include the
23 superintendent and personnel responsible for
24 maintaining the school district library program, a

1 probation status for noncompliance for the first
2 violation upheld by the State Department of Education
3 and State Board of Education,

4 c. under existing administration, to include the
5 superintendent and personnel responsible for
6 maintaining the school district library program, a
7 warning status for noncompliance for the second
8 violation upheld by the State Department of Education
9 and State Board of Education,

10 d. under existing administration, to include the
11 superintendent and personnel responsible for
12 maintaining the school district library program, a
13 deficiency status for noncompliance for the third or
14 subsequent violations upheld by the State Department
15 of Education and State Board of Education,

16 e. a deficiency status for noncompliance for any
17 violation in which administration or school library
18 personnel knowingly violated subsections B or C of
19 this section,

20 f. upon a deficiency status of noncompliance under
21 subparagraph c or d of this paragraph by the State
22 Board of Education, the noncompliant school district
23 or charter school shall be required to submit a
24 complete listing of all books and other materials

1 available in its school library on a quarterly basis
2 for a period of time to be established pursuant to the
3 facts by the State Board of Education, not to exceed
4 two academic school years, and

5 g. any school district or charter school with a
6 deficiency status of noncompliance under this
7 paragraph for two of three academic school years, or
8 two consecutive academic school years, may receive a
9 five percent (5%) reduction in state funding for the
10 fiscal year following the most recent fiscal year of
11 noncompliance upon a vote of the State Board of
12 Education.

13 6. During such time that a violation has been reported and is
14 being investigated, the material under investigation shall be
15 removed from the library of the public school or public charter
16 school for general circulation and unavailable for student access
17 until such time when the investigation reaches a final
18 determination.

19 F. The State Board of Education shall promulgate rules to
20 implement the provisions of this section.

21 SECTION 2. This act shall become effective July 1, 2026.

22 SECTION 3. It being immediately necessary for the preservation
23 of the public peace, health, or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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